

Court No. - 29

Case :- WRIT - C No. - 5762 of 2021

Petitioner :- Vinod Kumar Jaiswal And Another

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Ajay Singh,Baleshwar Chaturvedi

Hon'ble Pankaj Naqvi,J.

Hon'ble Piyush Agrawal,J.

This matter relates to recovery of electricity dues, not cognizable by this Bench.

List as fresh on 22.02.2021 before appropriate Bench.

This order has been passed in presence of Ms. Usha Kiran, learned counsel for the Corporation.

Order Date :- 18.2.2021

Amit Mishra

Court No. - 39

Case :- WRIT - C No. - 5762 of 2021

Petitioner :- Vinod Kumar Jaiswal And Another

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Ajay Singh,Baleshwar Chaturvedi,Usha Kiran

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

The issue being raised herein is with regard to the validity of recovery citation dated 21.9.2020 issued by the respondent no.3 for recovery of electricity dues against the company namely M/s Vijay Ispat Alloy Pvt Ltd which is private limited company registered under Companies Act. The petitioners herein are ex-Directors of the Company. The issue in the present petition is as to whether the recovery of electricity dues can be made against the person who is Director of the body cooperate treating him as consumer of electricity.

Clause 4.3(f)(v) of the Electricity Supply Code, 2005 provides for recovery proceedings against the defaulting consumer, and where the defaulting consumer is a company, from the Directors of the Company. The validity of this provision is sought to be challenged as ultra vires the Electricity Act, 2003.

The issue being raised herein is subject matter of consideration in Writ C no.11426 of 2016(Brijesh Kumar Agarwal and another vs State of U.P and 6 others) wherein an interim protection has been granted to the petitioners therein by order dated 10.3.2016 in the following manner:-

"Prima facie, it is evident from the agreement for the supply of electrical energy which is Annexure-2 to the writ petition that the consumer is the seventh respondent.

Clause 4.3 (f) (v) of the Electricity Supply Code 2005 provides for recovery proceedings against the defaulting consumer, and where the defaulting consumer is a Company, that recovery from the Directors of the Company, shall be ensured. The validity of this provision is sought to be challenged in these proceedings, as ultra vires the Electricity Act, 2003.

The basis of the challenge is that the expression 'consumer' is defined in Section 2 (15) of the Electricity Act, 2003. The submission

is that where a body corporate is a consumer, recovery cannot be enforced against its Directors. Hence, it has been submitted that the subordinate legislation is ultra vires.

The issue requires consideration.

Hence, we direct that notice shall issue both to the Advocate General and to the fourth respondent. The fifth and sixth respondents have appeared through counsel.

Counter affidavit, if any, be filed within a period of four weeks from today.

In the meantime, we direct that the recovery citation shall not be enforced against the petitioner. However, this shall not restrain the enforcement of the amount due in accordance with law against the seventh respondent."

Learned counsel for the petitioners informs that the said writ petition is pending consideration. As the issue are same, we are of the considered opinion that the petitioners herein are also entitled for the interim relief.

Learned standing counsel appearing for respondent nos.1, 2 and 3 and Ms.Usha Kiran learned counsel for the respondent nos.5 and 6 are directed to file counter affidavit.

Let a notice be issued to respondent no.7 returnable at an early date.

Steps be taken by registered post AD as well as through courier.

All the respondents may file counter affidavit by the next date fixed.

In the meantime, it is directed that the recovery citation dated 21.9.2020 shall not be enforced against the petitioner. However, the pendency of the present writ petition would not be a reason to stay the proceedings against the respondent no.7.

Connect and list along with Writ C No.11426 of 2016 on **15.4.2021 in the additional cause list.**

Order Date :- 16.3.2021

Harshita

In Residence

Case :- WRIT - C No. - 5762 of 2021

Petitioner :- Vinod Kumar Jaiswal And Another

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Ajay Singh,Baleshwar
Chaturvedi,Usha Kiran

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Dinesh Pathak,J.

A link has been provided to the counsels for the parties to hear the matter through video conferencing.

None appears on behalf of the petitioner despite repeated calls.

Sri Abhishek Srivastava learned counsel has put in appearance on behalf of the respondent-Nigam. He states that since the vires of clause 4.3 (f) (v) of the U.P. Electricity Supply Code 2005 is subject matter of challenge in the present petition, a response of the U.P. Electricity Regulatory Commission which has framed the U.P. Electricity Supply Code 2005 is needed.

Sri Amrendra Nath Singh learned counsel who appears to have been received the notice on behalf of the U.P. Electricity Regulatory Commission is not present.

However, in order to get the proper response from the respondents, let this matter be posted after two months.

Order Date :- 5.5.2021

Himanshu

Court No. - 21

Case :- WRIT - C No. - 5762 of 2021

Petitioner :- Vinod Kumar Jaiswal And Another

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Ajay Singh,Baleshwar
Chaturvedi,Usha Kiran

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

List on 22.3.2023, alongwith connected cases.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.2.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 5762 of 2021

Petitioner :- Vinod Kumar Jaiswal And Another

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Ajay Singh,Baleshwar Chaturvedi,Usha
Kiran

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Since vires of Clause 4.3 (f) (v) of the U.P. Electricity Supply Code, 2005 is under challenge, therefore, we had called upon learned Advocate General to assist the Court in the instant matter.

At his request, list on 18.05.2023 alongwith connected matters.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.5.2023

SL

Court No. - 39

Case :- WRIT - C No. - 5762 of 2021

Petitioner :- Vinod Kumar Jaiswal And Another

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Ajay Singh, Baleshwar Chaturvedi, C.S.C., Jai
Krishna Upadhyay, Usha Kiran

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

As prayed by Sri Kunal Ravi Singh, learned counsel for the respondents, list this case on 07.04.2025.

Order Date :- 20.3.2025

vkj

Court No. - 3

Case :- WRIT - C No. - 5762 of 2021

Petitioner :- Vinod Kumar Jaiswal And Another

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Ajay Singh, Baleshwar
Chaturvedi, C.S.C., Jai Krishna Upadhyay, Usha Kiran

Hon'ble Shekhar B. Saraf, J.

Hon'ble Prashant Kumar, J.

List this matter on November 10, 2025 in top ten cases along with connected matters.

Subsisting interim order in the present matter and in other connected matters to continue till the next date of listing.

Order Date :- 4.8.2025

Kuldeep

(Prashant Kumar, J.) (Shekhar B. Saraf, J.)



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 5762 of 2021

Vinod Kumar Jaiswal And Another

.....Petitioner(s)

Versus

State Of U.P. And 6 Others

.....Respondent(s)

Counsel for Petitioner(s) : Mayank Kumar Agrawal

Counsel for Respondent(s) : Ajay Singh, Baleshwar Chaturvedi,
C.S.C., Jai Krishna Upadhyay, Usha
Kiran

Court No. - 40

HON'BLE SARAL SRIVASTAVA, J.

HON'BLE SUDHANSHU CHAUHAN, J.

1. The writ petition is of the year 2021.

2. This Court on 16.03.2021 issued notices to learned Advocate General and respondent no.4 and directed them to file counter affidavit. On 05.05.2021 this Court again granted time for filing counter affidavit. On 03.05.2023, this Court called upon learned Advocate General to assist the Court in the instant matter. On 20.03.2025, this Court adjourned the matter on the request of learned Chief Standing Counsel. Again on 04.08.2025, the case was adjourned.

3. From the aforesaid fact, it is evident that this Court has granted time to file counter affidavit, but no counter affidavit has been filed despite the fact that the matter is important inasmuch as virus of Clause 4.3 (f) (v) of the U.P. Electricity Supply Code, 2005 is under challenge in the petition.

4. The case was called out in revised list. We have been informed that Sri Bharat Pratap Singh, Advocate has been nominated in the case as State Counsel to assist the learned Advocate General.

5. When the case is called out, Sri Bharat Pratap Singh, Advocate was not present nor the Advocate General was present. In such view of the fact, the Court had no option but to proceed with the matter.

6. Argument of Sri Mayank Kumar Agrawal, learned counsel for the petitioners is continuing.

7. Put this case tomorrow i.e. on **12.12.2025** immediately after cases.

December 11, 2025

SS

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 5762 of 2021

Vinod Kumar Jaiswal And Another

.....Petitioner(s)

Versus

State Of U.P. And 6 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Mayank Kumar Agrawal
Counsel for Respondent(s)	:	Ajay Singh, Baleshwar Chaturvedi, C.S.C., Jai Krishna Upadhyay, Usha Kiran

Court No. - 40

**HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.**

Due to paucity of time, the case could not be taken up.

List on **16.12.2025** immediately after fresh cases.

December 12, 2025
Sattyarth

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 5762 of 2021

Vinod Kumar Jaiswal And Another

.....Petitioner(s)

Versus

State Of U.P. And 6 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Mayank Kumar Agrawal
Counsel for Respondent(s)	:	Ajay Singh, Baleshwar Chaturvedi, C.S.C., Jai Krishna Upadhyay, Usha Kiran

Court No. - 40

**HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.**

Due to paucity of time, the case could not be taken up.

List on **06.01.2026**.

December 16, 2025
Sattyarth

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)